

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

SECTION 1: IDENTIFICATION OF THE AGENCY AND THE CONTRACTING ACTIVITY

Department of State Contracting Activity	☐ Office of Acquisitions Management ☐ Foreign Service Institute ☐ Office of Foreign Missions ☐ U.S. Mission to the United Nations ☒ Overseas Post Bogota
Requiring Activity	INL Bogota - Maritime Interdiction Program

SECTION 2: NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED

Approval is requested to award a new firm-fixed-price (FFP) contract on a brand name, other than full and open competition basis for Dell brand-name supplies and/or services described in Section 3, on behalf of the **INL Bogota - Maritime Interdiction Program**. The estimated price is [REDACTED]

SECTION 3: DESCRIPTION OF SUPPLIES/SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS

To support Colombian Navy Intelligence counter narcotics operations INL Bogota requires the purchase of the following elements brand name Dell ®

Dell computing solution ™ is offered in [REDACTED] the required items are:

- One (1) AI-Powered Server: Dell PowerEdge XE9680 + Nvidia 1 GPU + License Interface Platform
- One (1) NVIDIA AI Enterprise Essentials Subscription per NVIDIA GPU 5 Years
- One (1) NVIDIA AI Enterprise 24x7 Support for NVIDIA AI Enterprise Essentials per NVIDIA GPU 5 Years
- One (1) Red Hat Enterprise Linux Server, Premium (Physical Node with up to 1 Virtual Node) (L3 Only)
- Two (2) Red Hat System Administration I Virtual Training
- Three (3) PowerEdge R7625 Server
- Twelve (12) Dell Networking – Fiber Cable OM4 LC/LC (5m)
- One (1) PowerEdge Training Plan – 2 Participants POP: expires 1 year from purchase date
- Three (3) Dell Pro Max 16 Plus MB16250
- Fifty-three (53) Dell 34 Plus USB-C Monitor – S3425DW
- Twenty-five (25) Dell Pro Max Tower T2 FCT2250

The estimated value for the entire period of performance, including all hardware, software, services, and training described in this section, is [REDACTED] (rounded up to the nearest dollar)

SECTION 4: IDENTIFICATION OF THE STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION

This statutory authority permitting other than full and open competition is 41 U.S. Code 1901 as implemented by FAR 13.501(a) and FAR 13.106(b); specifically, this authority permits contracting on a brand-name basis.

SECTION 5: DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED



This acquisition must be structured around a single, recognized brand name to ensure full interoperability, seamless integration with existing Colombian Navy systems, and sustainable long-term support. In the specific operational and technical environment of the Colombian Navy, Dell Technologies is the only brand that meets these requirements at scale and aligns with the existing core infrastructure.

The Colombian Naval Intelligence Command already operates predominantly on Dell Technologies servers, which constitute the majority of its critical infrastructure (LiveOptic analysis, December 2024). Standardizing on the same brand is therefore essential to:

- Guarantee full compatibility with current systems and applications.
- Ensure continuity of operations across regional units (Caribbean, Pacific, Amazon, and Orinoquía) that have not yet been modernized.
- Avoid costly and risky cross-brand migrations, middleware integrations, and system re-engineering.
- Maximize previous investments by reusing legacy Dell components as spare parts, thereby extending the useful life of regional assets.

The brand requirement is also directly linked to the mission. The Colombian Navy, supported by INL Bogotá, seeks to enhance its operational capabilities [REDACTED]

[REDACTED] These processes demand high performance, scalability, and secure computing resources that are already proven and certified in the AI processing market. Dell's product line offers integrated solutions—hardware, firmware, and management tools—designed to deliver this level of performance while maintaining security and reliability in defense environments. OEM guarantees the Dell™ computing solution functionality if and only if DELL™ IT equipment is used.

In addition, Dell's established presence in Colombia, through its authorized representative [REDACTED], is a critical factor. [REDACTED] status as an official Dell channel partner ensures:

- Direct alignment with Dell's technical, security, and lifecycle standards.
- Compliance with Colombian legal and regulatory requirements for IT procurement and services.
- Access to certified local support and maintenance, which is indispensable for a mission critical, 24/7 defense infrastructure.

A further central requirement of this acquisition is that the AI powered server infrastructure be installed and operated within Colombian territory. Dell's architecture and local support ecosystem enable secure, in country deployment that:

- Preserves data sovereignty and chain of custody over sensitive intelligence information.
- Reduces latency for real time probabilistic modeling and scenario simulation in naval operations.
- Ensures operational continuity during national security contingencies.

Finally, the exclusive selection of Dell Technologies is consistent with widely recognized principles of technology lifecycle management and compatibility in public sector IT:

- Boehm (1981) and Janssen & de Lange (2011) highlight the need to manage system growth, maturity, and obsolescence through planned renewal of assets.
- O'Connor & McDermott (2013) empirically show that technological compatibility—often achieved through brand standardization—is a key determinant of public sector IT project success.

Given that the Colombian Naval Intelligence Command's [REDACTED] Dell, the continued use of this brand is not a matter of preference but a technical and operational necessity. It is the only approach that guarantees compatibility, preserves past investments, reduces implementation risk, and ensures that the



Colombian Navy can effectively deploy [REDACTED] computing capabilities in support of national [REDACTED] operations.

Delay acquiring this capability is not acceptable. Every month, thousands of [REDACTED] United States. This data computing capability is required today to make more effective the Colombian Navy interdiction operations and minimize the [REDACTED] the United States.

SECTION 6. DESCRIPTION OF EFFORTS TO ENSURE THAT OFFERS WERE SOLICITED FROM AS MANY POTENTIAL SOURCES AS IS PRACTICABLE, INCLUDING WHETHER A NOTICE WAS OR WILL BE PUBLICIZED AS REQUIRED BY FAR SUBPART 5.2 AND, IF NOT, WHICH EXCEPTION UNDER FAR 5.202 APPLIES

INL Bogota - Maritime Interdiction Program conducted market research in accordance with FAR Part 10 to identify sources capable of providing the AI powered server infrastructure required for the Colombian Navy Intelligence Fusion Center. This research included review of commercially available AI enabled server platforms, outreach to potential vendors, and assessment of suppliers with the technical capacity and in country presence to install, configure, and sustain the system within the Colombian Navy.

The Program Office examined multiple manufacturers and integrators. However, the requirement for a secure, scalable, AI optimized infrastructure—installed, operated, and supported in Colombia, and fully interoperable with the Navy’s existing environment—effectively narrowed the field. Only solutions based on Dell Technologies met all the Government’s minimum needs, including:

- Proven compatibility with the Colombian Navy’s current Dell based infrastructure.
- Availability of AI optimized high performance server configurations that satisfy mission requirements.
- Ability to provide in country installation, configuration, and lifecycle support in line with manufacturer standards.

The AI powered server configurations required for this project are not stocked or commercially available through general distribution channels. Their advanced technical specifications and custom configuration mean that nonauthorized local vendors cannot legally or practically source, deliver, or maintain them. Only Dell authorized partners with established, brand specific supply chain access and certification can procure and deploy these systems in country while maintaining compliance with Dell’s technical, security, and support standards.

Because this acquisition will be executed in a foreign environment, a synopsis of the proposed procurement was not published under FAR Subpart 5.2. This is consistent with the blanket synopsis waiver for foreign acquisitions under DOSAR 605.202-70.

The procurement proceeds under the authority of FAR 6.3021, “Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.” The market research demonstrates that only Dell branded solutions—implemented through an authorized Dell representative in Colombia—can meet the Government’s minimum technical, operational, and support requirements for this mission.



In accordance with FAR 5.102(a)(6), the brand name justification for Dell Technologies will be incorporated into the solicitation.

SECTION 7. DETERMINATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT IS FAIR AND REASONABLE

The Contracting Officer will utilize the price analysis techniques described in FAR 13.106-3(a) to determine the agreed-upon price to be fair and reasonable. Dell Technologies has catalogue pricing on GSA Advantage and the Contracting Officer can also utilize historical pricing from past procurements.

By signing the justification, the Contracting Officer makes a determination that the estimate of [REDACTED] to the Government is expected to be fair and reasonable.

SECTION 8. DESCRIPTION OF THE MARKET RESEARCH CONDUCTED (SEE PART 10) AND THE RESULTS OR A STATEMENT OF THE REASON A MARKET RESEARCH WAS NOT CONDUCTED

INL Bogota – Maritime Interdiction Program in coordination with the Colombian Navy, conducted market research within the past 12 months (approximately June 2025–January 2026) to identify sources capable of providing the required AI powered server infrastructure for the Fusion Center in Bogotá, Colombia. The research reviewed commercially available AI enabled solutions, included direct vendor outreach, and assessed suppliers with the ability to provide, install, and support the systems in country.

Two Dell related sources were formally engaged and evaluated:

- [REDACTED]
- [REDACTED]

Both were assessed against the Government's minimum requirements: high-performance AI processing, secure system integration, cybersecurity compliance, and in country installation and sustainment.

The research confirmed that, while several global manufacturers produce highend servers, only Dell Technologies offers a solution that fully meets the required technical specifications and integration needs with the Colombian Navy's existing Dell environment. Due to Original equipment Manufacturer (OEM) controlled distribution and supply chain restrictions, the specific AI optimized configurations required are not available through general Colombian resellers or unauthorized third parties. Only Dell and its authorized partners can legally source, configure, and support these systems.

[REDACTED] was identified as the only vendor able to deliver the Dell solution with authorized local support, at lower overall cost than direct OEM procurement and with a sustained presence in Colombia. This local, brand authorized support is essential for successful deployment and lifecycle maintenance.

No other sources identified in the market research could meet all technical requirements and the in-country support requirement. The research therefore supports limiting competition to Dell authorized sources under FAR 6.3021 and confirms that the required Dell brand technology is proprietary and available only through manufacturer-controlled channels.



SECTION 9. ANY OTHER FACTS SUPPORTING THE USE OF OTHER THAN FULL AND OPEN COMPETITION

Introducing a different operating system will be detrimental to Colombian Navy personnel with years of experience in DELL products. Upon arrival, system must deliver data analysis and enable operational interdiction results. Not acceptable to allocate time (years) to adapt to other operating systems.

SECTION 10. LISTING OF SOURCES, IF ANY, THAT EXPRESSED A WRITTEN INTEREST IN THE ACQUISITION

Vendor 1 – Name:		:	
Point of contact:		Phone number	
Address:		E-mail:	

Vendor 1 – Name:		Estimated cost (USD):	
Point of contact:		Phone number	
Address:		E-mail:	

SECTION 11. STATEMENT OF THE ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION FOR THE SUPPLIES OR SERVICES REQUIRED

For the reasons set forth in Paragraph 5, the Maritime Interdiction Program does not have plans at this time to compete future contracts for the types of supplies/services covered by this document. If another potential source emerges, the Maritime Interdiction Program will assess whether competition for future requirements is feasible.

There are no barriers within contracting agency's power to remove. The Government of Colombia investment in training on Dell technology over a decade experience using them is complete. The Maritime Interdiction Program does not expect the Government of Colombia to switch providers soon. All future requirements will be analyzed in advance to try to ensure that additional sources are identified and considered for future purchases.



SECTION 12. CERTIFICATIONS

All reviews and approvals should be completed in the order listed unless otherwise authorized or required.

TECHNICAL AND REQUIREMENTS CERTIFICATION (FAR 6.303-2(b))

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

Technical Cognizance:

SIGNATURE:

[Redacted Signature]

Requirements Cognizance:

SIGNATURE:

[Redacted Signature]

LEGAL SUFFICIENCY REVIEW

This J&A is hereby determined to be legally sufficient.

SIGNATURE:

Name

Date



CERTIFICATIONS (Continued)

CONTRACTING OFFICER CERTIFICATION (FAR 6.303-2(a)(12))

I certify that this submission is accurate to the best of my knowledge, and that it contains complete information necessary to enable other officials to make an informed recommendation for approval or disapproval.

SIGNATURE:

[Redacted Signature] _____
[Redacted Name] _____ Date

Contracting Officer & Branch Chief

SIGNATURE:

[Redacted Signature] _____
[Redacted Name] _____



SECTION 13. APPROVALS

**COMPETITION ADVOCATE
SIGNATURE:**

Competition Advocate

Date

NOTE: Each review must stipulate and include lower level signatory concurrence only prior to the higher dollar threshold approval. Signatories shall not exceed FAR or U.S.C. dollar threshold authority.